

26PR00516 Estate of Mark Freeman

County: sonoma

Division: Probate

Hearing date: 2026-06-26

Motion: Other Hearing

Source URL: <https://sonoma.courts.ca.gov/online-services/tentative-rulings/probate-tentative-rulings/estates-other-probate-tentative-rulings>

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Estate of Mark Freeman

26PR00516

Other Hearing

Tentative Ruling: NO APPEARANCES REQUIRED. This matter is CONTINUED to August 14, 2026 at 9:30 a.m. in Department 12 for the reasons set forth below.

Use of the DE-115 notice of hearing form is mandatory in the context of California Probate Code ("Prob C") §850 petitions. The petitioner has used the incorrect notice of hearing form here, the DE-120 form.

The notice of hearing does not include a description of the property that is the subject of the Prob C §850 claim, as required by Prob C §851(c)(1).

The respondent, Casey Campell, is the person alleged to be in possession of property belonging to the estate. She is entitled to notice pursuant to Prob C §851(a)(2), i.e. in the manner of a summons, but she is served by mail only. Petitioner should note that Prob C §851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure §413.10 et seq. (i.e. in the manner of a summons.)